

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEWART MCKENZIE,

Petitioner

VS.

LAYNE RINGGENBERG,

Respondent

) Case Number: FDI-25-801724

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS, ENFORCE STIP AND ORDER FILED
10/28/2025 AND SANCTIONS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Stewart Mckenzie and Respondent Layne Ringgenberg.
- 2) On 7/23/25, Petitioner filed a Petition for Dissolution of Marriage and Domestic Partnership. Petitioner lists the date of marriage as 10/18/13 and date of separation as 7/18/25 for a marriage of 11 years and 9 months. Petitioner lists the registration date of domestic partnership as 10/18/03 and date of separation as 7/18/25 for a domestic partnership of 21 years and 9 months.
- 3) On 9/1/25, Respondent filed a Response and Request for Dissolution of Marriage and Domestic Partnership. Respondent lists the date of marriage as 10/18/13 and date of separation as 7/18/25 for a marriage of 11 years and 9 months. Petitioner lists the registration date of domestic partnership as 10/18/03 and date of separation as 7/18/25 for a domestic partnership of 21 years and 9 months.

- 1 4) On 10/28/25, the parties filed a Stipulation and Order, which includes, in relevant part,
2 agreements for: (a) Respondent to retain sole occupancy of the real property located at 122 Joost
3 Avenue, San Francisco, CA 94131 until 3/15/26 (marital home); (b) the parties to select a real
4 estate agent by 12/31/25; (c) Petitioner to continue paying joint obligations for the parties'
5 mortgage, homeowner's insurance, auto insurance, water and sewer, motorhome insurance, and
6 motorhome storage fee.
- 7 5) On 4/24/26, Petitioner filed a Request for Order seeking enforcement of the terms of parties'
8 10/28/25 Stipulation and Order and \$5,000 in Family Code section 271 sanctions. Petitioner
9 states he can no longer pay the mortgage and carrying costs on the marital home as he is
10 unemployed and requests Respondent be ordered to vacate the marital home within 15 days so it
11 can be listed for sale forthwith to avoid foreclosure.
- 12 6) On 6/3/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
13 Order. Respondent states serious medical issues and hospital stays have impacted his ability to
14 move out of the marital home. Respondent asserts he is not refusing to move out of the marital
15 home; however, he is also struggling financially and cannot agree to move out of the marital
16 home until the fall when he anticipates his health will stabilize. Respondent seeks Family Code
17 Section 2030 attorney's fees in the amount of \$3,000.

18 **B. Findings and Order**

- 19 1) **The parties are ordered to appear.**
20
21
22
23
24
25
26
27
28
29